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CONTRACT AGREEMENT

THIS AGREEMENT made the 10 day of May 2024 between **PARTIDO STATE UNIVERSITY** with office address at San Juan Bautista St., Goa, Camarines Sur, Philippines (hereinafter called "the Entity") of the one part and **PLDT INC.** with office address at Ramon Cojuangco Bldg., Makati Avenue, Makati City, Philippines (hereinafter called "the Supplier") of the other part;

WHEREAS, the Entity invited Bids for certain goods and ancillary services, particularly **UPGRADE OF PRIMARY DEDICATED DIRECT INTERNET CONNECTION FOR GOA CAMPUS** and has accepted a Bid by the Supplier for the supply of those goods and services in the sum of **Two Million Five Hundred Nineteen Thousand Nine hundred Ninety Five Pesos (PhP. 2,519,995.00)** (hereinafter called "the Contract Price").

The whole work comprised in the contract shall be completed, installed and/or delivered within Thirty (30) calendar days in accordance with the provisions of the bid documents.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.

2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as integral part of this Agreement, *viz.*:

   i. Philippine Bidding Documents (PBDs);
      i. Schedule of Requirements;
      ii. Technical Specifications;
      iii. General and Special Conditions of Contract(Section IV and V of the bidding Documents); and
      iv. Supplemental or Bid Bulletins, if any

   ii. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

   Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (*e.g.*, Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;

   iii. Performance Security;

   iv. Notice of Award of Contract; and the Bidder's conforme thereto; and

   v. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. **Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.**

3. Detailed Breakdown of Contract Cost

ITEM #	ITEM DESCRIPTION	QTY	UNIT	UNIT PRICE	TOTAL PRICE
1	**Primary Internet service for one (1) year 2024**	1	lot	2,519,995.00	2,519,995.00
	a. The ISP shall provide an internet connection				
	service to be installed at the Partido State				
	University, Goa Campus at which shall comply				
	with the following minimum requirements:				
	i. Dedicated direct Internet connection				
	via leased line (no shared connection)				
	ii. To be provided by duly established ISP				
	which operate a pure fiber network				
	end-to-end; (to attach certificate and/or proof that the company is operating via end-to-end fiber)				
	iii. With Committed Information Rate (CIR)				
	bandwidth of 400 Mbps full bandwidth				
	for both upstream and downstream				
	network traffic				
	iv. With less than 1% packet loss				
	(average over 1000ping) at any given				
	point in time.				
	v. Must provide at least 99.5 network				
	reliability / uptime / availability				
	b. The Service Provider shall be National				
	Telecommunication Commission (NTC) registered/				
	accredited company				
	c. Service Provider must provide an internet				
	bandwidth monitor/utilization via web browser				

LEO CONSTANTINE S. BELLO
End-User Representative

CHARLIE V. BALAGTAS
V.P. Admin. & Finance

ANTONIO B. NUÑEZ JR.
Relationship Manager

ARNEL B. ZARCEDO, EDEL
SUC President III

	MRTG, Cricket, RRD Tool, Net Flow, etc)				
	d. The Primary Internet Access Service Provider				
	MUST BE A DIFFERENT ISP/Telecommunications				
	Company from the Secondary Internet Access				
	Services Provider				
	e. Must provide Thirty-Two (32) Useable Public IP				
	Addresses or /27 IP Block				
	f. Must provide an Fiber interface or hands-off Fiber				
	interface circuit that will connect to ParSU Network.				
	g. IP routing must be redundant and with diversity.				
	h. Must provide a multiple gateway router to				
	internet for redundancy and reliability				
	i. The bidder must be IPV6-ready				
	and/or compliant.				
	j. The bid price must be VAT Inc. and up to				
	3 months arrears without disconnection				
	Others:				
	1. Provide 24 x 7 technical assistance and				
	customer service accessible via telephone				
	and email.				
	2. The service provider must submit detailed				
	escalation and restoration procedure for				
	network or service outages including the				
	contact details				
				Grand Total:	**2,519,995.00**

4. In consideration for the sum of **Two Million Five Hundred Nineteen Thousand Nine hundred Ninety Five Pesos (PhP 2,519,995.00)** or such other sums as may be ascertained, **PLDT INC.** agrees to supply & deliver in accordance with his/her/its Bid.

5. The **PARTIDO STATE UNIVERSITY** agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

PLDT INC.

By:

ANTONIO B. NUÑEZ JR.
Relationship Manager

PARTIDO STATE UNIVERSITY

By:

ARNEL B. ZARCEDO, EDEL
SUC President III

SIGNED IN THE PRESENCE OF:

CHARLIE V. BALAGTAS
V.P.-Admin. & Finance

LEO CONSTANTINE S. BELLO
End-User Representative

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
GOA, CAMARINES SUR) s.s.

BEFORE ME, a Notary Public for and in the above jurisdiction personally appeared the following:

NAME	VALID ID.	DATE/PLACED ISSUED
ARNEL B. ZARCEDO, EDEL	Passport P2633758B	July 24, 2019, Legazpi City
ANTONIO B. NUNEZ JR.	TIN: 488-793-200	10-31-23, Makati

to me to the same persons who executed the foregoing instruments and acknowledged to me that the same is their own free will and voluntary act and deed.

WITNESS MY HAND AND SEAL, this 10 MAY 2024 day of _____, 20__ at _____, Philippines.

ATTY. ANDY G. RIVERO
NOTARY PUBLIC
NOTARY PUBLIC FOR THE PROVINCE OF CAM. SUR
UNTIL DEC. 31, 2025
ROLL OF ATTORNEY NO. 61526
IBP LIFETIME NO. 018653
PTR NO. 5853801 JAN. 03, 2024 - SAN JOSE, CAM. SUR
MCLE COMPLIANCE NO. VII-0023840
SAN JUAN BAUTISTA POB., GOA, CAM. SUR

Doc. No. 198
Page No. 39
Book No. XII
Series of: 2024

Republic of the Philippines
PARTIDO STATE UNIVERSITY
Camarines Sur

NOTICE OF AWARD

March 15, 2024

ANTONIO B. NUÑEZ JR.
Relationship Manager
PLDT, INC.
Ramon Cojuangco Bldg.,
Makati Avenue, Makati City
Telephone/Mobile: 09088865199
E-mail: abnunez@pldt.com.ph

Dear Mr. Nuñez:

We are happy to notify you that the project **UPGRADE OF PRIMARY DEDICATED DIRECT INTERNET CONNECTION FOR GOA CAMPUS** with a contract price amounting to **Two Million Five Hundred Nineteen Thousand and Nine Hundred Ninety-Five Pesos only (₱ 2,519,995.00)** is hereby awarded to you.

You are therefore required, within ten (10) days from the receipt of this Notice of Award, to formally enter into contract with us, and to submit the Performance Security as required in R.A. 9184. Failure to enter into the said contract or provide the Performance Security shall constitute a sufficient ground for cancellation of this award and forfeiture of your Bid Security.

Very truly yours,

ARNEL B. ZARCEDO, EDEL
SUC President III

Conforme:

Antonio Nuñez
PLDT, INC.
Date: 4-19-24

RECEIVED
APR 19 2024
BY: .....

Republic of the Philippines
PARTIDO STATE UNIVERSITY
Camarines Sur

NOTICE TO PROCEED

May 10, 2024

ANTONIO B. NUÑEZ JR.
Relationship Manager
PLDT, INC.
Ramon Cojuangco Bldg.,
Makati Avenue, Makati City
Telephone/Mobile: 09088865199
E-mail: abnunez@pldt.com.ph

Dear Mr. Nuñez:

Considering the approved Contract Agreement, notice is hereby given that the delivery may proceed for the project: **UPGRADE OF PRIMARY DEDICATED DIRECT INTERNET CONNECTION FOR GOA CAMPUS**, effective upon receipt of this Notice.

Please be reminded that you are responsible for performing the services under the terms and conditions stated in the Contract and in accordance with the Implementation Schedule.

Please acknowledge the receipt and acceptance of this notice by signing both copies in the space provided below. Keep one copy and return the other to PSU the soonest possible time.

Very truly yours,

ARNEL B. ZARCEDO, EDEL
SUC President III

I acknowledge receipt of this Notice on May 10, 2024

Name of Representative of the Bidder Antonio Nuñez Jr.

Authorized Signature

PLDT

Response

to

Bid Requirements

for

PARTIDO STATE UNIVERSITY

UPGRADE OF PRIMARY DEDICATED DIRECT INTERNET CONNECTION FOR GOA CAMPUS WITH SOLICITATION NUMBER PSU ITB 23-11-340

ORIGINAL Financial Component

Bid Form for the Procurement of Goods

[shall be submitted with the Bid]

BID FORM

Date : February 8, 2024

Project Identification/Reference No. : PSU ITB 23-11-340

To: **PARTIDO STATE UNIVERSITY**
ARNEL B. ZARCEDO, EDEL
BAC Chairperson
JHONNA SALVE J. BUENAFLOR
AO III – Bac Secretary
BAC Secretariat Office, Partido State University
GOA Camarines Sur
Mobile No. 09165556732
Email Address: bac@parsu.edu.ph

Having examined the Philippine Bidding Documents (PBDs) including the Supplemental or Bid Bulletin Numbers ***[01, 02, 03, 04, and 05]***, the receipt of which is hereby duly acknowledged, we, the undersigned, offer to supply, deliver, and perform the ***Upgrade of Primary Dedicated Direct Internet Connection for GOA Campus with Solicitation Number PSU ITB 23-11-340*** in conformity with the said PBDs for the sum of ***TWO MILLION FIVE HUNDRED NINETEEN THOUSAND NINE HUNDRED NINETY FIVE PESOS ONLY VAT INCLUSIVE [PHP 2,519,995.00]*** or the total calculated bid price, as evaluated and corrected for computational errors, and other bid modifications in accordance with the Price Schedules attached herewith and made part of this Bid. The total bid price includes the cost of all taxes, such as, but not limited to: *[specify the applicable taxes, e.g. (i) value added tax (VAT), (ii) income tax, (iii) local taxes, and (iv) other fiscal levies and duties]*, which are itemized herein or in the Price Schedules,

If our Bid is accepted, we undertake:

a. to deliver the goods in accordance with the delivery schedule specified in the Schedule of Requirements of the Philippine Bidding Documents (PBDs);

b. to provide a performance security in the form, amounts, and within the times prescribed in the PBDs;

c. to abide by the Bid Validity Period specified in the PBDs and it shall remain binding upon us at any time before the expiration of that period.

[Insert this paragraph if Foreign-Assisted Project with the Development Partner:
Commissions or gratuities, if any, paid or to be paid by us to agents relating to this Bid, and to contract execution if we are awarded the contract, are listed below:

Name and address of agent	Currency	Amount and Purpose of Commission or gratuity
		None
		None
		None

(if none, state "None")]

Until a formal Contract is prepared and executed, this Bid, together with your written acceptance thereof and your Notice of Award, shall be binding upon us.

We understand that you are not bound to accept the Lowest Calculated Bid or any Bid you may receive.

We certify/confirm that we comply with the eligibility requirements pursuant to the PBDs.

The undersigned is authorized to submit the bid on behalf of ***PLDT INC.*** as evidenced by the attached ***Letter of Authorization/Secretary's Certificate.***

We acknowledge that failure to sign each and every page of this Bid Form, including the attached Schedule of Prices, shall be a ground for the rejection of our bid.

Name: **Antonio B. Nuñez Jr.**

Legal capacity: **RELATIONSHIP MANAGER**

Signature: _____

Duly authorized to sign the Bid for and behalf of: **PLDT INC.**

Date: ***February 8, 2024***

Republic of the Philippines
PARTIDO STATE UNIVERSITY
Camarines Sur

Bid Prices

ITEM #	ITEM DESCRIPTION	QTY	UNIT	ABC PER ITEM	UNIT PRICE	TOTAL PRICE
1	**Primary Internet service for one (1) year 2024**	1	lot	2,520,000.00	2,519,995.00	2,519,995.00
	a. The ISP shall provide an internet connection					
	service to be installed at the Partido State					
	University, Goa Campus at which shall comply					
	with the following minimum requirements:					
	i. Dedicated direct internet connection					
	via leased line (no shared connection)					
	ii. To be provided by duly established ISP					
	which operate a pure fiber network					
	end-to-end; (must attach certificate)					
	iii. With Committed Information Rate (CIR)					
	bandwidth of 400 Mbps full bandwidth					
	for both upstream and downstream					
	network traffic					
	iv. With less than 1% packet loss					
	(average over 1000ping) at any given					
	point in time.					
	v. Must provide at least 99.5 network					
	reliability / uptime / availability					
	b. The Service Provider shall be National					
	Telecommunication Commission (NTC) registered/					
	accredited company					
	c. Service Provider must provide an Internet					
	bandwidth monitor/utilization via web browser					
	(e.g. MRTG, Cricket, RRD Tool, Net Flow, etc)					
	d. The Primary Internet Access Service Provider					
	MUST BE A DIFFERENT ISP/Telecommunications					
	Company from the Secondary Internet Access					
	Services Provider					
	e. Must provide Thirty-Two (32) Useable Public IP					
	Addresses or /27 IP Block					
	f. Must provide an Fiber interface or hands-off Fiber					
	interface circuit that will connect to ParSU Network.					
	g. IP routing must be redundant and with diversity.					
	h. Must provide a multiple gateway router to					
	internet for redundancy and reliability					
	i. The bidder must be IPV6-ready					
	and/or compliant.					
	j. The bid price must be VAT inc. and up to					
	3 months arrears without disconnection					
	Others:					
	1. Provide 24 x 7 technical assistance and					
	customer service accessible via telephone					
	and email.					
	2. The service provider must submit detailed					
	escalation and restoration procedure for					
	network or service outages including the					
	contact details					
					Grand Total:	2,519,995.00

Delivery Period : Within 30 calendar days upon receipt of NTP
Warranty : 12 months
Price Validity : 120 calendar days

After having carefully read and accepted your General Conditions, I/We quote on the item at price noted above.

Printed Name/Signature: Antonio B. Nuñez
Tel No./Cellphone No.: 09088865199
E-mail Address: abnunez@pldt.com.ph
TIN No.: 000-488-793-00000

Price Schedule for Goods Offered from Within the Philippines

[shall be submitted with the Bid if bidder is offering goods from within the Philippines]

For Goods Offered from Within the Philippines

Name of Bidder: PLDT INC.

Project ID No.: PSU ITB 23-11-340 Page 1 of 1.

1	2	3	4	5	6	7	8	9	10
Item	Description Upgrade of Primary Dedicated Direct Internet Connection for GOA Campus with Solicitation Number PSU ITB 23-11-340	Country of Origin	Quantity (Months)	Unit price EXW per item	Transportation and all other costs incidental to delivery, per item	Sales and other taxes payable if Contract is awarded, per item	Cost of Incidental Services, if applicable, per item	Total Price, per unit (col 5+6+7+8)	Total Price delivered Final Destination (col 9) x (col 4)
1	Upgrade of Primary Dedicated Direct Internet Connection for Goa Campus	Philippines	12	PHP 187,499.63	-	PHP 22,499.96	-	PHP 209,999.59	PHP 2,519,995.03
								TOTAL	PHP 2,519,995.03

Name: **Antonio B. Nuñez Jr.**
Legal Capacity: **RELATIONSHIP MANAGER / AUTHORIZED REPRESENTATIVE**
Signature:
Duly Authorized to sign the Bid for and behalf of: **PLDT INC.**